

Unequal Representation:

Unequal Representation: How Congress Serves Constituents

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Rethinking Representation in Congress

How do we measure quality of representation?

- **Ideological fit**
- **Legislative Effectiveness**
- **Constituency Service** ← **Our New Approach**

What is Constituency Service?

*“help to individuals, groups, and localities
in coping with the federal government.”*

– Fenno (1978)



Senator Mike Crapo ✓

@MikeCrapo

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My office can assist you.

Visit www.crapo.senate.gov/services/casework/federal-agency-assistance to learn more.



Classic Examples:

- Help with an immigration case
- Help with social security benefits
- Help with veteran's benefits

Classic Examples:

- Help with an immigration case
- Help with social security benefits
- Help with veteran's benefits
- Non-Ideological
- Helping Constituents Solve Problems

What do we know about constituency service?

- Congressional scholars *think* they know a lot.
- It contributes to a member's personal vote (Fiorina).
- **BUT ...** we've never had any hard data on it.
- Behind the scenes:
 - Difficult for academics to study
 - Difficult for voters to monitor.

How Constituency Service Works

Step 1: Constituent writes/calls Legislator

Step 2: Legislator writes/calls Agency

Step 3: Legislator writes to Constituent

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Step 2: Legislator writes/calls Agency



Step 3: Legislator writes to Constituent

Creating the first systematic constituency service data

- Requests that members of Congress made directly to parts of the federal bureaucracy.
 - Letters, emails, phone calls
- Obtained through FOIA requests to all agencies.
- Usually obtained a summary of the request.
- Sometimes obtained the written request itself.

Note: Prior Studies Using FOIA Approach

- Represent constituents' policy demands despite party pressure (Ritchie 2017)
- Constituents and institutional position, not ideology, drive policy oversight (Lowande 2018)
- Descriptive → substantive (Lowande, Ritchie, Lauterbach, 2018)
- Bureaucrats have reasons to comply
 - And they do (Ritchie and You n.d.).
 - Though not always (Mills and Kalaf-Hughes 2015))

Limitation of Prior Studies Using FOIA Approach

- Based on a small number of agencies.

Our Correspondence Data

- 250+ FOIA requests to 233 federal agencies (a census)
- Data Coverage: 2007-2018
- We began placing these requests 2.5 years ago.
- 150,000+ legislator requests (and counting)

Our Correspondence Data

	FOIAed Components	Records Received	Coded	N
Department of Agriculture	29	29	11	1957
Department of Commerce	18	18	10	6875
Department of Defense	49	10	7	5479
Department of Education	1	1	1	3868
Department of Energy	8	2	1	1269
Department of Health and Human Services	15	7	5	6199
Department of Homeland Security	6	5	5	26435
Department of Housing & Urban Dev.	2	0	0	0
Department of Justice	11	1	1	903
Department of Labor	24	9	6	22936
Department of State	1	0	0	0
Department of the Interior	10	6	5	5171
Department of the Treasury	8	5	4	11143
Department of Transportation	10	6	6	18482
Department of Veterans Affairs	3	0	0	0
Independent Agencies	38	21	18	46182
Total	233	120	80	156899

Format of Data We Received

- Digital Spreadsheets
- PDFs
- Scans of Handwritten Documents
- CD-ROMS
- Photocopies

Correspondence Data

Environmental Protection Agency

CHRISTENSEN, DONNA M-U.S. House of Representatives-D/VI/DC

Total: 28

Control No.	Status	Letter Date	Received	Subject	Last Action
AL-07-000-2996	Closed	Feb 08, 2007	Feb 23, 2007	GOVERNOR JOHN DEJONGH REQUEST A MEETING TO DISCUSS HIS CONCERNS REGARDING THE PROPOSED CLEAN AIR ACT SECTION 325 EXEMPTIONS FOR THE VIRGIN ISLANDS WATER AND POWER AUTHORITY 71 FED. REG. 74886-74895 (DECEMBER 13, 2006)-	ADMIN Kathy Callahan CC aborted due to user office changed.
AL-07-000-8271	For Your Information	May 16, 2007	May 17, 2007	HEARING/SUBCOMMITTEE ON INSULAR AFFAIRS, THURSDAY JUNE 7, 2007 AT 10:00 AM IN ROOM 1324 LONGWORTH HOB/H.R. 1075 (BORDALLO), TO ESTABLISH THE UNITED STATES TERRITORIES INFRASTRUCTURE BOND BANK AND FOR OTHER PURPOSES, (UNITED STATES TERRITORIES INFRASTRUCTURE BOND BANK AUTHORIZATION ACT)	ADMIN Pam Abraham CC aborted due to user office changed.
AL-09-000-6162	Closed	Mar 16, 2009	Apr 27, 2009	SUPPORT THE ST. CROIX ENVIRONMENTAL ASSOCIATION (SEA) APPLICATION FOR AN EPA COMMUNITY ACTION FOR A RENEWED ENVIRONMENT (CARE) GRANT	Kathy Mims Control Closed

Correspondence Data

Department of Homeland Security Immigration and Customs Enforcement (ICE)

OCR INQUIRY/CORRESPONDENCE LOG

Date	Member Office	Topic/Issue	Coordinator	Date Closed Out	SP No.
10/23/16	Gen. Steve Darnes	Billings Central Catholic High School	(b)(6);(b)(7)(C)		
10/24/16	Rep. Anna Adams	(b)(6);(b)(7)(C)	(b)(6);(b)(7)(C)		
11/24/16	Rep. Lanny	(b)(6);(b)(7)(C)	(b)(6);(b)(7)(C)		
11/24/16	Rep. Brad Wurstrap	Ambassador Bible College	(b)(6);(b)(7)(C)		
11/24/16	Gen. Jeanne Graham	(b)(6);(b)(7)(C)	(b)(6);(b)(7)(C)		
11/24/16	Rep. Gordon Maloney	LJM College	(b)(6);(b)(7)(C)		

Correspondence Data

MAC THORNBERRY
13TH DISTRICT
TEXAS



Congress of the United States

House of Representatives

June 6, 2008

OFFICE OF
EXTERNAL AFFAIRS

FEDERAL ENERGY
REGULATORY COMMISSION

CP08-9-000
PR08-1-000
ARMED SERVICES COMMITTEE
PERMANENT SELECT COMMITTEE
ON INTELLIGENCE

ORIGINAL

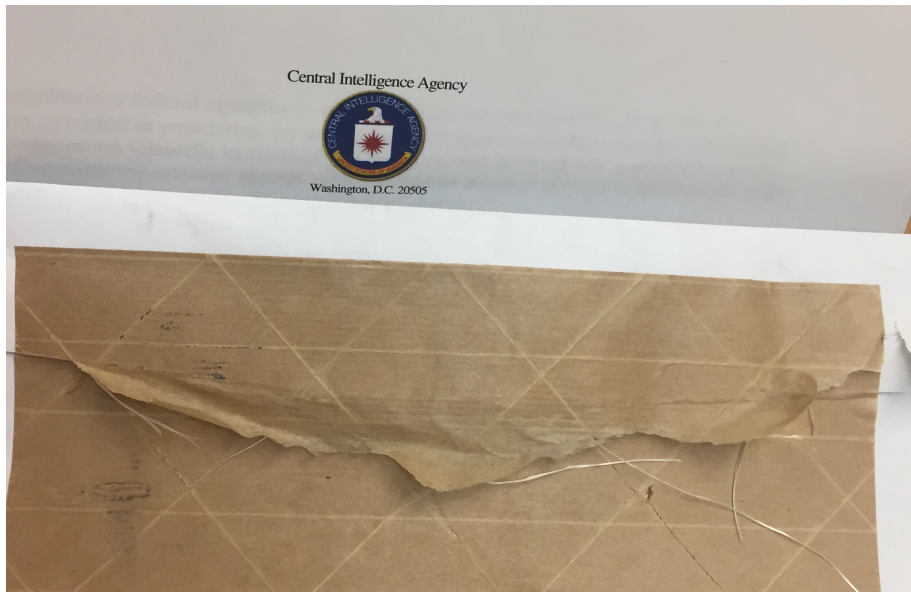
The Honorable Joseph T. Kelliher
Chairman
Federal Energy Regulatory Commission
888 First Street, N.E.
Washington, DC 20426-0001

Dear Chairman Kelliher,

I am enclosing letters from Wayne Hughs, Executive Vice President of the Panhandle Producers and Royalty Owners Association, and Thomas R. Cambridge, President of Cambridge Production, Inc., regarding a pending application before the Federal Energy Regulatory Commission. Both letters are requesting an expedited evidentiary hearing on a proposed lease of firm capacity by Enogex, Inc., to Midcontinent Express Pipeline, LLC, to fully explore the impact on existing shippers. I would appreciate your full consideration of these requests.

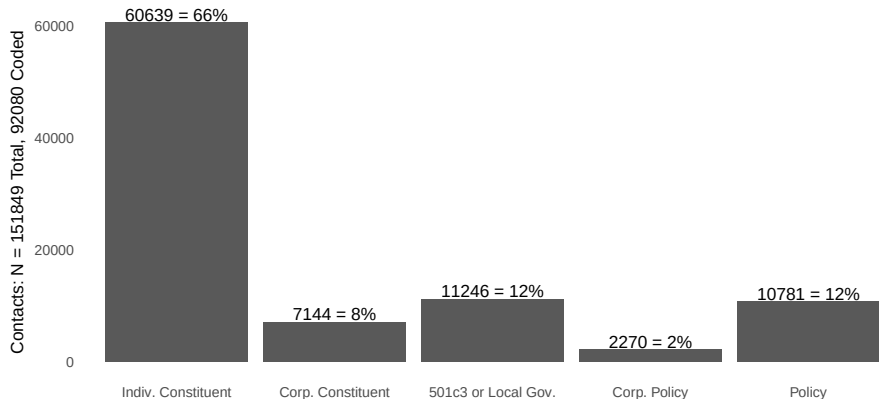
Many natural gas producers in my district are concerned about the negative impact the pending

Agency Character: CIA #OnBrand



Distribution

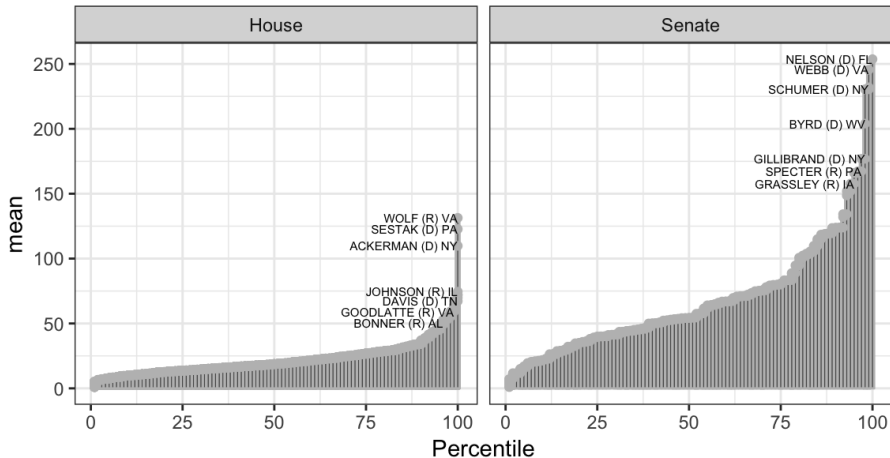
Figure: Distribution Across Types of Congressional Requests 2007-2017



Do constituents in different districts receive comparable representation?

Highly Unequal Rates: Variation in Who Contacts Agencies

Average Legislator Requests per Year by Percentile



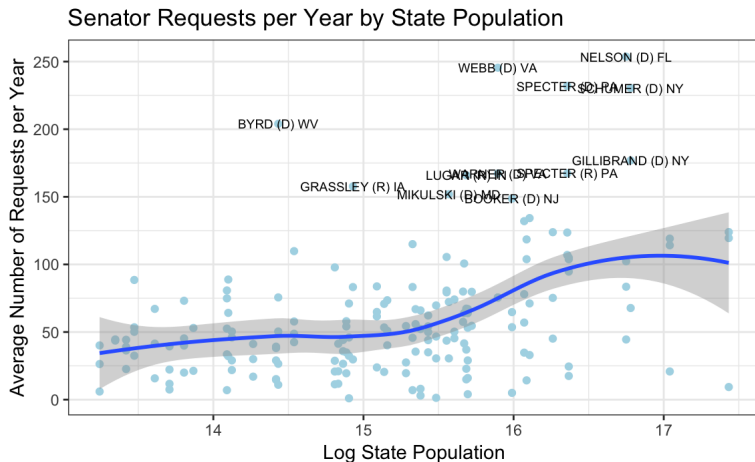
Highly Unequal Rates

- High levels of inequality
- Gini-Coefficient for House $\sim$ US Income Inequality

Are these differences driven by constituent demand?

Constituency Demand

Figure: Senators from larger states do more constituency service, but ...



So why do some legislators do more constituency service than others?

Institutional Explanations: A constituent-policy trade-off?

- “Potomac fever” (Fenno, 1978)

Institutional Explanations: A constituent-policy trade-off?

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- “Insiders” who have lost touch

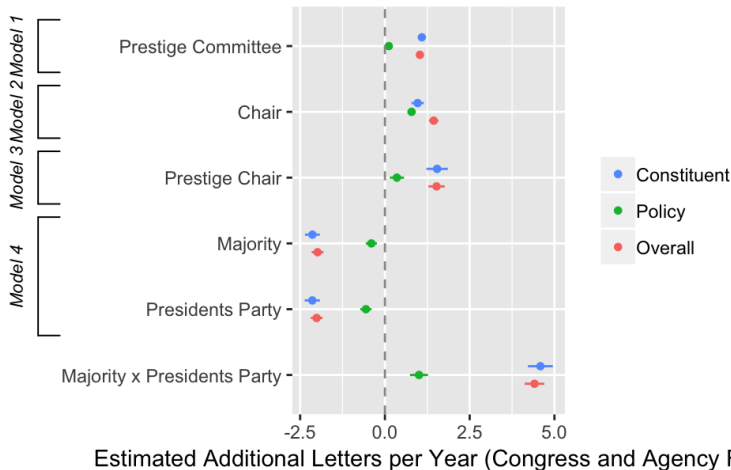
Institutional Explanations: A constituent-policy trade-off?

- “Potomac fever” (Fenno, 1978)
- “Insiders” who have lost touch
- #DrainTheSwamp

Institutional Power and Constituency Service

Legislators who have power advocate more on behalf of constituents.

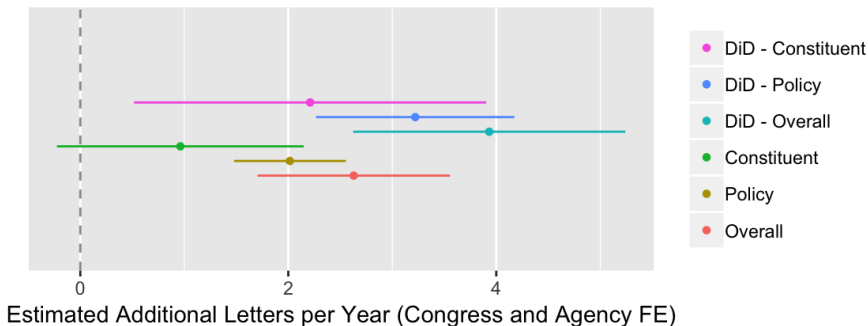
Cross Sectional Differences in Letter Writing



Statutory Oversight Power

Legislators who **gain** power advocate more on behalf of constituents.

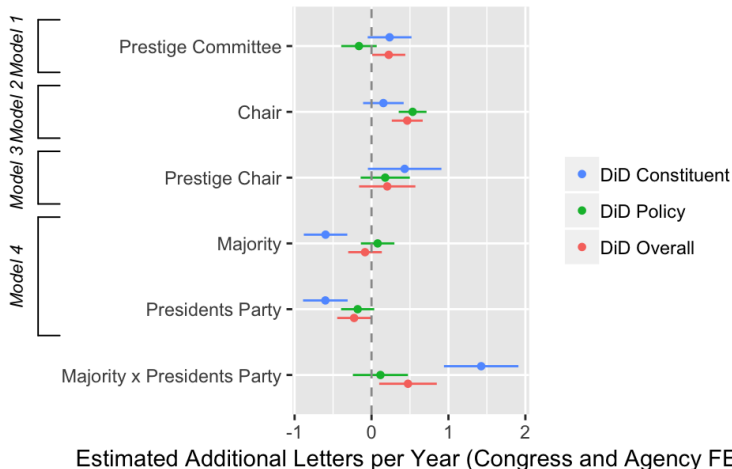
Chairs Relative to Other Oversight Committee Members



Difference-in-Differences in Constituency Service

Legislators who **gain** power advocate more on behalf of constituents.

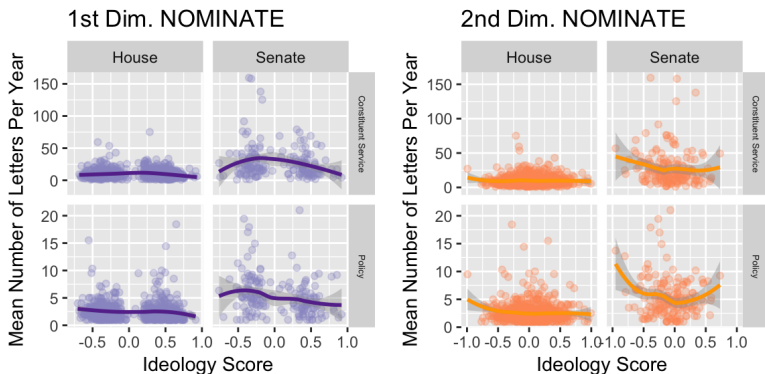
Difference-in-Differences in Letter Writing



Does legislator ideology explain the variation in
constituency service?

NOMINATE Scores

Figure: Legislators' Ideology Seems Not to Predict How Often They Contact Agencies



Do female legislators do more constituency service?

Do female legislators do more constituency service? No.
(Small, insignificant near zero negative effect).

Questions going forward:

- How to measure constituent demand for service?
- How does quality of representation vary with district demographics?
- Who advocates on behalf of donors rather than constituents?

Thank you!

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Table: Cross Sectional Differences in Letter Writing

	Overall	Constituent	Policy
Prestige Comm.	1.10 (0.06)	0.68 (0.05)	0.04 (0.01)
Chair	1.51 (0.09)	0.59 (0.08)	0.23 (0.02)
Prestige Chair	1.80 (0.16)	1.05 (0.14)	0.12 (0.03)
Majority	-2.15 (0.12)	-1.36 (0.10)	-0.14 (0.02)
President's Party	-2.10 (0.12)	-1.33 (0.10)	-0.12 (0.02)
Majority x President's Party	4.80 (0.19)	2.91 (0.16)	0.29 (0.4)
Congress Fixed Effects	✓	✓	✓
Agency Fixed Effects	✓	✓	✓

Table: Difference-in-Differences in Letter Writing

	Overall	Constituent	Policy
Prestige Comm.	0.16 (0.15)	0.05 (0.14)	-0.04 (0.03)
Chair	0.59 (0.14)	0.07 (0.12)	0.16 (0.03)
Prestige Chair	0.58 (0.25)	0.31 (0.23)	0.07 (0.05)
Majority	-0.45 (0.16)	-0.38 (0.14)	-0.14 (0.02)
President's Party	-0.30 (0.15)	-0.35 (0.13)	-0.12 (0.02)
Majority x President's Party	1.02 (0.25)	0.88 (0.22)	0.02 (0.05)
Congress Fixed Effects	✓	✓	✓
Agency Fixed Effects	✓	✓	✓
Legislator Fixed Effects	✓	✓	✓

Table: Chairs of Committees with Oversight Power Allocate More Attention to Individual Requests Than Other Committee Members

Oversight Chair	Overall 2.62 (0.56)	Constituent 1.70 (0.54)	Policy 0.40 (0.10)	Overall 5.05 (1.04)	Constituent 3.78 (0.95)	Policy 0.21 (0.17)
Congress FE	✓	✓	✓	✓	✓	✓
Agency FE	✓	✓	✓	✓	✓	✓
Legislator FE				✓	✓	✓